

the execution to be stayed until such an investigation shall be made, it cannot entertain a bill on its equity side to enjoin the United States from proceeding upon such judgment, since that is a suit against the United States. In *Hill v. United States*,¹ the doctrine is reaffirmed that execution upon a judgment in favor of the United States may not be enjoined. In *Bouldin v. State*,² on the contrary, it was held that such a suit to restrain execution, upon the ground that the bond on which the judgment was obtained was executed without consideration, is not a suit against the State, but simply setting up a defense that might have been availed of in the original suit.³

¹9 How. 386.

²21 Ark. 84.

³In the United States, it is agreed, consent to suit against the state can be given only by the legislature; the executive does not possess the prerogative of the crown in this respect. *U. S. v. Lee*, 106 U. S. 196; *Stanley v. Schwalby*, 162 U. S. 255; *Case v. Terrell*, 11 Wall. 199; *Carr v. U. S.*, 98 U. S. 433.

In case of consent, the state has full control over the proceedings. *De Groot v. U. S.*, 5 Wall. 419; *Beers v. Arkansas*, 20 How. 527. Possible exception as to the substantive law—see *U. S. v. Klein*, 13 Wall. 128.

PART II.

SUITS AGAINST PUBLIC OFFICERS.

CHAPTER I.

THE PRINCIPLE OF LIABILITY IN TORT.

The first part of this study has dealt with the doctrine of non-suability of the state, and the extent to which it applies to the States of the United States. In the last chapter, has been set out the scope of the doctrine—what forms of action are suits against the state, and what proceedings, though affording judicial remedy against the state, are not within the prohibition. In this second part, will be considered suits against public officers, in relation to the immunity of the state from suit.

It was early settled in English law that, although the crown may not be sued for torts done by public officers, the actors themselves may be held liable, and that it is no defense to set up an unlawful authority from the crown. An act of parliament is, of course, always lawful authority. But where a statute may be held unconstitutional, as in the United States, it furnishes no better defense than the unlawful order of a higher executive officer.

The lack of valid defense in an unlawful authority from the crown has been rested upon the maxim that "the king can do no wrong." To authorize a wrong, it is said, is to do a wrong; hence, in the eye of the law, the alleged authority cannot exist. This maxim must mean one of two things. First, that whatever the king does is right; with the necessary corollary that whatever the king authorizes is right. Practically, this was, no doubt, for a time in large measure true; and the king's servants acting as judges made no pretense of exercising jurisdiction over the king's servants

acting for him in other ways. But the doctrine of absolution was soon definitely negatived. Second, that no wrong will be imputed to the king. In this view, it is a senseless fiction. A more rational explanation is that, although the king may do wrong, he is protected by his immunity from suit. If he does wrong through an agent, the agent is liable, although the king is not.

The state, of course, can act only through agents. The agent, in committing a tort, may be regarded either as not acting for the state, in which view the agent alone would be liable, or as acting, although unlawfully, for the state, in which view both principal and agent would be liable, although the principal would be protected by the immunity of the state from suit. In either view, the liability of the agent results from the fact that his act is in itself unlawful, and does not rest upon lawful state authority. Such authority cannot exist if forbidden by a higher authority. Thus, a statute cannot afford lawful authority if contrary to the constitution.

CHAPTER II.

INJUNCTION AGAINST TORT.

In the great case of *Osborn v. Bank of United States*,¹ was presented the question whether a public officer, about to commit a tort under a statute alleged to be unconstitutional, may be enjoined therefrom if equitable ground exists. An act of Ohio imposed a tax of \$50,000 a year on each branch of the Bank of the United States situate in Ohio, and instructed the State auditor to issue his warrant for distraint therefor in case of failure to pay. The bank brought suit in the United States circuit court to enjoin the auditor from proceeding to collect the tax, upon the ground that it was unconstitutional—as it was, in fact, held in this case. The part of the decision of the supreme court in point here is the affirmance of the decree granting this injunction.

The remedy of injunction against public officers had been used in England, though very sparingly.² Chief Justice Marshall, however, as usual, cited no precedents.

One contention of appellants was that, admitting that in an action for damages the statute would be no justification if found unconstitutional, but that the State officers must be treated as individual trespassers, yet there existed no ground for equitable relief. Chief Justice Marshall answered thus: "The appellants treat the declaration of Osborn, the auditor, that he should execute the law, as the light and frivolous threats of an individual that he would commit an ordinary trespass. But surely this is not the point of view in which the application for an injunction is to be considered. The legislature of Ohio had passed a law for the avowed purpose of expelling the bank from the State; and had made it the duty of the auditor to execute it as a minis-

¹9 Wheat. 738.

²Goodnow: *Admin. Law of the U. S.*, p. 420 et seq.